

12. **What expressions will or will not exclude the trust estate.**—The expression “*my* real estates” will not restrict the meaning to those vested in the testator beneficially (*g*), nor will a *devise to A., his heirs and assigns, “to and for *his and their own use and benefit*” (*a*), nor a devise to A. and her heirs, to be disposed of by her by will or otherwise, as she may think fit (*b*): though under a devise to a woman for her *separate use*, as the words import a beneficial enjoyment, a dry legal estate will not pass (*c*); but a devise to a woman, “her heirs and assigns, for her and *their own sole and absolute use*,” expresses only the absolute interest, and does not create a separate estate (*d*). Whether a residuary devise of lands to persons as tenants in common in *equal shares*, will pass a trust estate, has never been expressly decided, but a judicial opinion has been expressed that such a devise would not pass a dry trust estate (*e*). A devise to the testator’s *nephews and nieces* share and share alike as tenants in common, and not as joint-tenants, as the class is unascertained at the date of the will, does not pass a trust estate (*f*). And if the devise be for A. for life or in tail, with remainders over, in strict settlement, the trust estate will not pass (*g*). “Where there is a limitation of real estate,” said Lord Eldon, “in strict settlement, with a vast number of limitations, contingent remainders, executory devises, powers of jointuring, leasing, and raising sums of money, it is impossible to say the intention could be to give a dry trust estate” (*h*).

Price, 78; *Ex parte Brettell*, 6 Ves. 577.

(*g*) *Braybroke v. Inskip*, 8 Ves. 425.

(*a*) *Ex parte Shaw*, 8 Sim. 159; *Bainbridge v. Lord Ashburton*, 2 Y. & C. 347; *Sharpe v. Sharpe*, 12 Jur. 598; and compare *Ex parte Brettell*, 6 Ves. 577, with *Braybroke v. Inskip*, 8 Ves. 434.

(*b*) *Ex parte Shaw*, 8 Sim. 159.

(*c*) *Lindsell v. Thacker*, 12 Sim. 178. The marginal note of the Report is quite contrary to the decision.

(*d*) *Lewis v. Mathews*, 2 L. R. Eq. 177.

(*e*) *Martin v. Laverton*, 9 L. R. Eq. 568, *per* V. C. Malins; and see cases there referred to; [*Re Morley's Trust*, 10 Hare, 293.]

(*f*) *Re Finney's Estate*, 3 Giff. 465.

(*g*) *Thompson v. Grant*, 4 Madd. 438; *Re Horsfall*, 1 Maccl. & Younge, 292; *Galliers v. Moss*, 9 B. & C. 267; *Ex parte Bowes*, cited in *Mr. Sanders's note to Casborne v. Scarfe*, 1 Atk. 603.

(*h*) *Braybroke v. Inskip*, 8 Ves. 434.